

2011 WL 6440371 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Joel ALMANZAR, Plaintiff,
v.
THE CITY OF NEW YORK and **Elvis Merizalde**, Defendants.

No. 0027615-2011.
December 8, 2011.

To the above named defendants: You Are Hereby Summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the state of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York December 8, 2011

Summons

Breadbar, Garfield & Schmelkin, Attorney for Plaintiffs, 11 Park Place, 10th Floor, New York, New York 10007, (212) 227-886.

VERIFIED COMPLAINT

Plaintiff, by his attorneys, **BREADBAR, GARFIELD & SCHMELKIN**, hereby set forth and allege, upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned, and on September 18, 2010, the plaintiff, *JOEL ALMANZAR*, was and still is a resident of the County of Kings, City and State of New York.
2. That, at all times hereinafter mentioned, and on September 18, 2010, the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That, at all times hereinafter mentioned and on September 18, 2010, the defendant, **ELVIS MERIZALDE**, (hereinafter referred to as "**MERIZALDE**") was and still is a resident of the City and State of New York.
4. That the plaintiff, **JOEL ALMANZAR**, has complied with all of the conditions precedent to the commencement of the within action against the defendants; plaintiff's Notice of Claim having been served upon the defendant, **THE CITY**, on November 19, 2010, within ninety (90) days of the date that the within cause of action were caused to accrue; that thirty (30) days have elapsed and this claim remains unpaid and unadjusted; that the plaintiff, **JOEL ALMANZAR**, testified at an oral examination, pursuant to the General Municipal Law, on November 15, 2011; and that this action is being commenced herewith within one (1) year and ninety (90) days from the date that the within cause of action was caused to accrue.

5. That, at all times hereinafter mentioned and on September 18, 2010, and for sometime thereafter, defendant, *MERIZALDE*, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

6. That, on September 18, 2010, the plaintiff, *JOEL ALMANZAR*, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

7. That, the plaintiff, **JOEL ALMANZAR** was assaulted/ battered without justification and without cause and without excuse.

8. That, the assault/battery took place while the plaintiff, **JOEL ALMANZAR**, was in front of premises known as 517 51st Street, and other locations in the County of Kings, City and State of New York, wherein the plaintiff, **JOEL ALMANZAR**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

9. That, the aforementioned assault and battery of the plaintiff, *JOEL ALMANZAR*, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants.

10. That, by reason of the foregoing, the plaintiff, *JOEL ALMANZAR*, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

11. That this action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions, as well as the defendants having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. That, by reason of the foregoing, the plaintiff, *JOEL ALMANZAR*, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

13. That the plaintiff, *JOEL ALMANZAR*, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 12 with the same force and effect as if hereinafter more fully set forth at length herein.

14. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

15. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

16. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, *MERIZALDE*, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

17. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MERIZALDE**, who was employed by the defendant, **THE CITY**.

18. That, by reason of the foregoing, the plaintiff, **JOEL ALMANZAR**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

19. That this action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. That, by reason of the foregoing, the plaintiff, *JOEL ALMANZAR*, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

21. That the plaintiff, **JOEL ALMANZAR**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 20 with the same force and effect as if hereinafter more fully set forth at length herein.

22. That, on September 18, 2010, the plaintiff, **JOEL ALMANZAR**, was caused to be falsely arrested and falsely imprisoned without probable cause.

23. That, the plaintiff, *JOEL ALMANZAR*, was arrested without an arrest warrant.

24. That, the false arrest/false imprisonment took place while the plaintiff, **JOEL ALMANZAR**, was in front of premises known as 517 51st Street, in the County of Kings, City and State of New York and other locations, wherein the plaintiff, **JOEL ALMANZAR**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

25. That, the aforementioned false arrest and false imprisonment of the plaintiff, *JOEL ALMANZAR*, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

26. That, the aforementioned false arrest and false imprisonment of the plaintiff, *JOEL ALMANZAR* was carried out by defendant, **MERIZALDE**, and/or other servants, agents and/or employees of the defendant, **THE CITY**.

27. That, by reason of the foregoing, the plaintiff, *JOEL ALMANZAR*, injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions as well as the defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, *JOEL ALMANZAR*, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

30. The infant plaintiff, *JOEL ALMANZAR*, repeats, reiterates, realleges, each and every allegation as set forth in paragraphs 1 through 29, with the same force and effect as if hereinafter more fully set forth at length herein.

31. That by reasons of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, plaintiff, **JOEL ALMANZAR**, was caused to have his civil rights violated by the defendant and/or defendants, herein.

32. That, by reason of the foregoing, the plaintiff, *JOEL ALMANZAR*, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

33. That this action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

34. That, by reason of the foregoing, the plaintiff, *JOEL ALMANZAR*, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **JOEL ALMANZAR** demands judgment against the defendants on the First, Second, Third, and Fourth Causes of Action in an amount in excess of the jurisdictional limits of all of the lower courts of the State of New York; together with interest, as well as the costs and disbursements of these causes of action.

Dated: New York, New York December 8, 2011

Yours, etc.

BREADBAR, GARFIELD & SCHMELKIN

Attorneys for Plaintiff

JOEL ALMANZAR

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